Redacted and Signed by
Transition RAC
RADIX DAO LLC

OPERATING AGREEMENT

of

RADIX DAO LLC

a Marshall Islands Non-Profit DAO LLC

NOTICE OF RESTRICTIONS ON DUTIES AND TRANSFERS

The rights of members in a decentralised autonomous organisation may differ materially from the rights of members in other limited liability companies. The Marshall Islands DAO Act, the Certificate of Formation, this Operating Agreement, the Charter, and any relevant governance contracts or smart contracts may define, reduce or eliminate duties, may govern voting and governance rights, and may restrict transfers, withdrawal, resignation, return of contributions, access to information and dissolution.

RECITALS

WHEREAS, the Radix community approved the creation of a Marshall Islands DAO LLC as the legal entity to support the governance and development of the Radix decentralised protocol and its associated ecosystem;

WHEREAS, the community approved the current three-member RAC to carry forward the transition to that legal DAO LLC during the Transition Period;

WHEREAS, the Radix Foundation has required that the recipient entity have constitutional documents with aligned objectives, a non-distribution principle, an asset lock or winding-up provision, and a clearly documented governance structure, together with a continuity statement and appropriate compliance arrangements;

WHEREAS, the parties intend that the current three-member RAC shall operate during the Transition Period as the Transition RAC, being a temporary implementation authority responsible for formation, compliance, treasury setup, asset receipt, continuity arrangements and handover;

WHEREAS, the parties further intend that, after the Transition Period and satisfaction of the Activation Conditions, the Company shall be algorithmically governed through the governance mechanism recognised by this Agreement and the Charter, with the Permanent RAC acting as guardian of the governance process and constitutional order rather than as a manager;

NOW, THEREFORE, the parties agree as follows.

ARTICLE I – DEFINITIONS

1.1 "Activation Conditions" means the conditions specified in this Agreement and the Charter which must be satisfied before the Company becomes Algorithmically Governed, as set out in binary and evidentially defined form in Schedule 5.

1.2 "Activation Date" means the date on which the Activation Vote passes in accordance with the requirements of this Agreement and the Charter, being the date on which the Transition Period ends, and the Company becomes Algorithmically Governed.

1.3 "Activation Statement" means the statement published by the Transition RAC to the Official Venue confirming satisfaction of each Activation Condition set out in Schedule 5, together with the corresponding evidential proofs, in accordance with clause 8.5 of this Agreement.

1.4 "Activation Vote" means the vote conducted through the Governance Mechanism by Governance Participants confirming that each Activation Condition set out in Schedule 5 has been satisfied, the mechanics of which are set out in the Charter, and which constitutes the sole binding governance vote of the Company during the Advisory Governance Period.

1.5 "Advisory Governance Period" means the period commencing on the date of formation of the Company and ending on the Activation Date, during which governance outcomes produced through the Governance Mechanism are advisory only, save for the Activation Vote.

1.6 "Algorithmically Governed" means that, following the Transition Period and satisfaction of the Activation Conditions, the governance of the Company is carried out through the Governance Mechanism recognised by this Agreement and the Charter, including the relevant governance contracts, smart contracts, governance platform, voting rules, thresholds, and related constitutional procedures, such that governance outcomes determined in accordance with those rules become binding decisions of the Company, while off-chain implementation, legal execution, compliance, custody, and other non-automated functions may continue to be performed by authorised Persons or bodies where required by this Agreement, the Charter, or applicable law.

1.7 "Asset Transferor" means any Person or entity transferring or granting assets, rights, funds, credentials, or control positions to the Company.

1.8 "Charter" means the constitutional governance document of the Company, as adopted and amended in accordance with this Agreement, setting out the more detailed governance framework of the Company.

1.8A "On-Chain Identifiers & Verification Policy" means the operational policy of that name forming part of the DAO's governance framework and recognised under the Charter, which carries the authoritative register of the Company's governance and treasury on-chain identifiers, the rules for their configuration and use, and the means of their public verification, as in force from time to time in accordance with **clause 11.4**.

1.9 "Company" means Radix DAO LLC, a Marshall Islands non-profit DAO LLC formed pursuant to the Marshall Islands DAO Act 2022 and the applicable laws of the Republic of the Marshall Islands.

1.10 "Founding Transferor" means the principal transferor of assets, rights, funds, credentials, and control positions to the Company at or around the time of formation, the identity of whom is recorded in the Continuity Statement executed pursuant to Article IX of this Agreement and is not required to be named in this Agreement. References in this Agreement to the Founding Transferor shall be construed as references to the person whose identity is so recorded and shall remain valid notwithstanding any subsequent change of name, corporate restructuring, dissolution or replacement of that person, provided always that the Continuity Statement is updated accordingly.

1.11 "Governance Mechanism" means the on-chain or hybrid governance system recognised by this Agreement and the Charter through which Governance Participants submit proposals, vote, and determine governance outcomes binding on the Company in accordance with the applicable rules, thresholds, and procedures. For the purposes of Schedule 5 condition 6(b) only, "Governance Mechanism" also includes the community's pre-existing governance system in use for the constitutional ratification vote conducted before the Company's formation, the record of which is recognised and adopted by the Company under clause 11.1A.

1.12 "Governance Participant" means a Person, other than the Company in respect of Governance Tokens beneficially owned by it, who holds Governance Tokens and participates in the governance system of the Company in accordance with this Agreement, the Charter, and any subordinate governance rules validly adopted thereunder. Governance Participation does not, of itself, confer Membership.

1.13 "Governance Participation" means participation in the governance system of the Company by a Governance Participant through the Governance Mechanism recognised by this Agreement and the Charter.

1.14 "Governance Token" means any token or token class recognised by this Agreement, the Charter, or subordinate governance rules as conferring eligibility to participate in the governance system of the Company.

1.15 "Legal Signatory" means the Person authorised in accordance with this Agreement, the Charter, or a valid governance decision to execute contracts, continuity statements, transfer documents, custody documents, regulatory filings, and other legal instruments on behalf of the Company.

1.16 "Member" means a Person who holds Membership in the Company in accordance with this Agreement. For the avoidance of doubt, holding a Governance Token, participating in governance, contributing to the protocol, or otherwise participating in the wider Radix ecosystem shall not, of itself, constitute Membership in the Company.

1.17 "Membership" means the legal status of being a Member of the Company under this Agreement. During the Transition Period, Membership shall be held by the members of the Transition RAC. Following the Transition Period, Membership shall be held by the members of the Permanent RAC, unless and to the extent otherwise provided by this Agreement, the Charter, or a valid governance decision adopted in accordance with them. The broader class of Governance Participants or token-holders need not be identical to the legal Membership of the Company at all times.

1.18 "Official Venue" means the official online venue or venues of the Company identified in Schedule 3 and publicly designated in accordance with this Agreement and the Charter, being the venue or venues at which governance records, activation statements, status reports, advisory acknowledgements, and other official communications of the Company are published.

1.19 "Permanent RAC" means the Radix Accountability Council elected by the community during the Transition Period, after satisfaction of Activation Condition 6, in accordance with the Charter and the Elections Policy forming part thereof, and formally seated prior to the Activation Vote as required by Activation Condition 7, which assumes its constitutional role as the standing governance-process oversight body of the Company with effect from the Activation Date. The Permanent RAC is the guardian of the governance process and constitutional order of the Company and is not, unless expressly stated otherwise, a manager, general executive, treasury-management body, or policy-making authority.

1.20 "Person" means an individual, company, corporation, partnership, or any body incorporated or unincorporated, and includes every director, manager, agent, or secretary of such Person.

1.21 "Transition Period" means the period commencing on the date the Company is formed and ending on the Activation Date.

1.22 "Transition RAC" means the temporary Transition Radix Accountability Council constituted under this Agreement for the limited purpose of implementing the Transition Period, including completion of the formation of the Company, establishment of the transition treasury and related control architecture, satisfaction of initial compliance and onboarding requirements, receipt and safeguarding of assets, rights and control positions transferred to the Company, execution of continuity arrangements, and implementation of the handover to the Permanent RAC and the long-term governance framework. The Transition RAC is a temporary implementation authority only and shall have no continuing or general governance authority except as expressly set out in this Agreement and the Charter.

1.23 "Covered Person" means any of the following persons, in the exercise of their role in relation to the Company: (i) a Member (whether a Transition RAC member or a Permanent RAC member); (ii) a Governance Participant; (iii) a Transition RAC member or Permanent RAC member; (iv) a Legal Signatory or signer; and (v) any other person acting in an authorised role under this Agreement, the Charter, or a valid governance decision.

1.24 "Seated" means, in relation to a member of the Transition RAC or the Permanent RAC, a person who: (a) has been duly appointed or elected to their position on the relevant body; (b) has accepted this Agreement and, where applicable, the Charter, in accordance with clause 4.5; (c) has satisfied all applicable onboarding, compliance, KYC, and eligibility requirements for that role; and (d) has not ceased to hold that position by reason of resignation, removal, disqualification, or cessation of Membership in accordance with clauses 4.7 and 4.8. A person who has formally withdrawn from or resigned their position shall not be treated as Seated.

ARTICLE II – ORGANISATION AND FORMATION

2.1 Formation. The Members, by executing this Agreement, hereby agree to organise as a Marshall Islands non-profit member-managed decentralised autonomous organisation limited liability company during the Transition Period pursuant to the laws of the Republic of the Marshall Islands, including the DAO Act 2022, the Limited Liability Company Act 1996, the Non-Profit Entities Act 2020, the DAO Regulations 2024, and related applicable law.

2.2 Name. The name of the Company shall be Radix DAO LLC.

2.3 DAO Status. The Company is a decentralised autonomous organisation for the purposes of the Marshall Islands DAO Act 2022. The conspicuous notice of restrictions on duties and transfers appears at the beginning of this Agreement.

2.4 Registered Agent and Registered Office. The registered office of the Company in the Marshall Islands shall be the initial registered office designated in the Certificate of Formation or such other office as provided by law. The registered agent of the Company in the Marshall Islands shall be the initial registered agent designated in the Certificate of Formation.

2.5 Official Online Venue. The official online venue or venues of the Company shall be those identified in Schedule 3 and publicly designated in accordance with this Agreement and the Charter.

2.6 Representative Agent. The Company shall designate a representative agent or point of contact to receive correspondence and communicate with the registered agent and Registrar, in accordance with applicable law.

2.7 Term. The Company shall commence upon the date of filing of the Certificate of Formation and shall continue in existence until dissolved pursuant to this Agreement or by operation of law.

ARTICLE III – OBJECTS, NON-PROFIT CHARACTER AND APPLICATION OF PROPERTY

3.1 Non-Profit Character. The Company shall be a non-profit entity within the meaning of the Non-Profit Entities Act 2020 and may exercise the powers and privileges conferred upon limited liability companies by the laws of the Marshall Islands only in furtherance of and subject to its company purpose.

3.2 Objects. The Company is established exclusively for the following objects:

(a) education, research, development and management of decentralised ledgers, exchanges, cryptographic systems and technologies;

(b) support for knowledge creation, exchange and research in associated technologies;

(c) promotion of knowledge and education in, and the use, operation and governance of, decentralised networks, blockchains and complementary or alternative technologies; and

(d) creation, development and provision of governance for distributed ledger and decentralised protocols and the distribution and exchange of cryptographic tokens.

3.3 Income and Property. The income and property of the Company, from wherever derived, shall be applied solely in promoting the objects of the Company.

3.4 Non-Distribution Principle. No distribution shall be paid, and no capital or property of the Company shall be returned, transferred or distributed to any Member in cash or otherwise, except as expressly permitted by this Agreement.

3.5 Permitted Payments. Nothing in this Agreement shall prevent the Company from making, in good faith:

(a) reasonable and proper remuneration to any Member, officer, contractor, employee or other person for any services rendered to the Company;

(b) payment of interest on money lent to the Company by any Member or other person at a reasonable and proper rate;

(c) payment of reasonable and proper rent for premises leased or let to the Company; or

(d) reimbursement of reasonable out-of-pocket expenses properly incurred on behalf of the Company.

3.6 Authority of the Company. The Company shall have and exercise all powers conferred by Marshall Islands law on a non-profit DAO LLC and such further powers as are necessary or incidental to carrying out its objects, subject always to this Agreement, the Charter, and applicable law.

3.7 Further Non-Profit Limitation. The Company shall be operated solely in furtherance of its objects and not for the primary purpose of carrying on a trade or business for profit.

ARTICLE IV – MEMBERS AND MEMBERSHIP

4.1 Membership of the Company. The Company shall have Members. Membership in the Company is a legal and constitutional status governed exclusively by this Agreement and, where applicable, the Charter. For the avoidance of doubt, Membership is distinct from

Governance Participation, and a Person may be a Governance Participant without being a Member.

4.2 Members during the Transition Period. During the Transition Period, the Members of the Company shall be the members of the Transition RAC. A Person shall become a Member during the Transition Period upon:

(a) assuming a seat on the Transition RAC in accordance with this Agreement and the Charter;

(b) accepting this Agreement and, where applicable, the Charter, in accordance with clause 4.5; and

(c) satisfying any applicable onboarding, compliance, KYC, eligibility, or other requirements applicable to that role or Membership status.

4.3 Members following the Transition Period. Following the Transition Period, the Members of the Company shall be the members of the Permanent RAC, unless and to the extent otherwise provided by this Agreement, the Charter, or a valid governance decision adopted in accordance with them. A Person shall become a Member following the Transition Period upon:

(a) assuming a seat on the Permanent RAC, or such other office, seat, or role to which Membership is attached under this Agreement, the Charter, or a valid governance decision adopted in accordance with them;

(b) accepting this Agreement and, where applicable, the Charter, in accordance with clause 4.5; and

(c) satisfying any applicable onboarding, compliance, KYC, eligibility, or other requirements applicable to that office, seat, role, or Membership status.

4.4 No automatic Membership from Governance Participation. Holding a Governance Token, participating in governance, contributing to the protocol, or otherwise participating in the wider Radix ecosystem shall not, of itself, confer Membership in the Company. Governance Participation does not, of itself, constitute admission to Membership.

4.5 Method of Acceptance. Acceptance of this Agreement and, where applicable, the Charter, may be effected by any one or more of the following methods, as prescribed or approved by the Company:

(a) written signature;

(b) cryptographic or wallet-based execution or attestation;

(c) execution of a joinder, acceptance instrument, or equivalent record; or

(d) such other reliable method of acceptance as may be prescribed by the Company in accordance with this Agreement and the Charter.

4.6 Commencement of Membership. Membership shall commence when the relevant Person has satisfied all of the following:

(a) the Person has assumed the office, seat, or role to which Membership is attached under this Agreement or the Charter;

(b) the Person has accepted this Agreement and, where applicable, the Charter, in accordance with clause 4.5; and

(c) the Person has satisfied any applicable onboarding, compliance, KYC, eligibility, or other requirements applicable to that office, seat, role, or Membership status.

4.7 Cessation of Membership. A Person shall cease to be a Member immediately upon the earliest of:

(a) ceasing to hold the office, seat, or role by virtue of which Membership was conferred;

(b) resignation from that office, seat, or role, where resignation is permitted;

(c) removal from that office, seat, or role in accordance with this Agreement, the Charter, or the applicable governance process;

(d) failure, suspension, or disqualification in relation to any compliance, KYC, eligibility, or other requirement applicable to Membership, where this Agreement, the Charter, or applicable law so requires; or

(e) dissolution of the Company.

4.8 Effect of Cessation. Upon cessation of Membership, the relevant Person shall cease to have any rights, powers, or standing that arise solely by virtue of Membership, save to the extent that any surviving obligations, protections, indemnities, confidentiality obligations, or continuing provisions of this Agreement, the Charter, or applicable law remain in force. For the avoidance of doubt, cessation of Membership does not, of itself, affect any Governance Participation rights which that Person may separately hold by virtue of Governance Tokens, unless otherwise provided by this Agreement, the Charter, or applicable law.

4.9 No Economic Rights. Neither Membership nor Governance Participation confers any economic ownership in the Company's assets or any right to share in the income, profits, or distributions of the Company, subject only to the permitted payments expressly provided for in this Agreement.

4.10 Legal Membership and Governance Participation Distinguished. The broader class of Governance Participants or token-holders need not be identical to the legal Membership of the Company at all times. Accordingly, the fact that the Company is or becomes Algorithmically Governed does not require every Governance Participant or token-holder to be admitted as a Member of the Company.

ARTICLE V – GOVERNANCE PARTICIPATION AND GOVERNANCE EFFECT

5.1 Governance Participation. The Company shall recognise Governance Participation in accordance with this Agreement, the Charter, and the Governance Mechanism. A Person may be a Governance Participant without being a Member.

5.2 Governance Participants. A Governance Participant is a Person who holds Governance Tokens and participates in the governance system of the Company in accordance with this Agreement, the Charter, and any subordinate governance rules validly adopted thereunder. Governance Participation does not, of itself, confer Membership in the Company.

5.3 Governance Tokens. A Person shall be eligible to participate as a Governance Participant only to the extent that such Person holds Governance Tokens recognised for governance purposes under this Agreement, the Charter, or the subordinate governance rules validly adopted thereunder.

5.4 Exercise of Governance Rights. Governance Participants shall exercise governance rights through the Governance Mechanism recognised by this Agreement and the Charter. Such governance rights may include, to the extent provided for in this Agreement, the Charter, or subordinate governance rules validly adopted thereunder:

(a) proposing or supporting proposals;

(b) voting on proposals, governance changes, or other governance matters;

(c) participating in consultation, review, or other governance processes; and

(d) such other governance functions as may be recognised by the Company's governance framework.

5.5 Governance Participation Distinguished from Membership. Governance Participation is distinct from Membership. Accordingly:

(a) a Governance Participant need not be a Member;

(b) a Member need not hold Governance Tokens except to the extent required by this Agreement or the Charter; and

(c) the broader class of Governance Participants or token-holders need not be identical to the legal Membership of the Company at all times.

5.6 Governance Mechanism. The Governance Mechanism may include governance contracts, smart contracts, voting interfaces, recognised governance platforms, and such related procedures as are identified in this Agreement, the Charter, or subordinate governance rules validly adopted thereunder.

5.7 Binding Effect of Governance Outcomes after Activation. Following the Activation Date, governance outcomes validly determined through the Governance Mechanism in accordance with this Agreement and the Charter shall constitute binding decisions of the Company, subject always to:

(a) this Agreement;

(b) the Charter;

(c) applicable law; and

(d) any procedural or constitutional limits validly imposed under them.

5.8 Governance during the Advisory Governance Period. The period from the date of formation to the Activation Date shall constitute the Advisory Governance Period. During the Advisory Governance Period:

(a) Governance Participation may operate through the Governance Mechanism in accordance with this Agreement and the Charter;

(b) governance outcomes adopted through the Governance Mechanism shall constitute advisory expressions of community sentiment only and shall not constitute binding decisions of the Company, save that the Activation Vote shall, upon satisfaction of the requirements set out in this Agreement and the Charter, constitute the sole binding governance decision of the Company during the Advisory Governance Period;

(c) the Company shall remain subject to the limited implementation authority of the Transition RAC and shall not be treated as fully Algorithmically Governed until the Activation Date; and

(d) for the avoidance of doubt, no governance outcome adopted during the Advisory Governance Period, other than the Activation Vote, shall bind the Company beyond the scope permitted by this Agreement, the Charter, and the transitional governance framework.

5.9 Transition RAC duty to have regard to advisory outcomes. The Transition RAC shall have regard to advisory governance outcomes in the exercise of its mandate. Where an advisory governance outcome achieves the participation and majority thresholds for recognition specified in the Charter, the Transition RAC shall, within the period specified in the Charter following publication of that outcome, publish a written acknowledgement of the outcome to the Official Venue and, where it determines not to act in accordance with it, a written explanation of the basis for that determination. Such acknowledgements and explanations shall form part of the governance record of the Company. The foregoing does not limit the authority of the Transition RAC to act within its mandate in accordance with this Agreement and the Charter.

5.10 No Economic Rights from Governance Participation. Governance Participation does not confer any economic ownership in the Company's assets or any right to share in the income, profits, or distributions of the Company, subject only to the permitted payments expressly provided for in this Agreement.

5.11 Good Faith in Governance Participation. Governance Participants shall exercise their governance rights in good faith and in accordance with this Agreement, the Charter, and any applicable governance rules.

5.12 Recognition of Governance Records. The Company may recognise the records of the Governance Mechanism, including proposal records, vote records, and governance determinations, as authoritative evidence of governance participation and governance outcomes, subject to this Agreement, the Charter, and applicable law.

5.13 Authoritative Governance Record. The Governance Platform or other recognised Governance Mechanism identified in this Agreement, the Charter, or the subordinate governance rules shall constitute the authoritative record of Governance Proposals, votes, proposal outcomes, and governance determinations of the Company, subject to this Agreement, the Charter, and applicable law.

ARTICLE VI – TRANSITION PERIOD AND TRANSITION RAC

6.1 Recognition of the Transition Period. The Company recognises a Transition Period commencing on the date of formation and ending on the Activation Date.

6.2 Constitution of the Transition RAC. The current three-member RAC shall act during the Transition Period as the Transition RAC.

6.3 Composition. The Transition RAC shall consist of the three members approved by the community, as identified in Schedule 1.

6.4 Acceptance and Mandate. Each of the three members of the Transition RAC identified in Schedule 1 has accepted this Agreement in accordance with clause 4.5 and satisfied the applicable onboarding, eligibility, and KYC requirements. The mandate of the Transition RAC commences upon the date of execution of this Agreement and continues until the Activation Date or earlier termination in accordance with this Agreement.

6.5 Mandate of the Transition RAC. The mandate of the Transition RAC is strictly limited to the following transition-period functions:

(a) completion of the formation of the Company, including filing and organisational and structural steps;

(b) execution or approval of the constitutional and governance documents required for the Transition Period;

(c) satisfaction of initial KYC, BOIR, onboarding and compliance requirements in accordance with Marshall Islands applicable law;

(d) establishment of the treasury, custody and signer framework, including any initial PrimeVault or equivalent custody arrangements approved for transition purposes;

(e) receipt, safeguarding and documentation of assets, rights, and control positions transferred to the Company, including web2 credentials and related recovery arrangements;

(f) execution of the continuity statement and related transfer documentation;

(g) coordination of the constitution of the Permanent RAC and the post-transition governance framework; and

(h) implementation of the handover to the Permanent RAC and long-term governance framework.

6.6 Decision Rule of the Transition RAC. Unless the Charter provides a higher threshold for a specified matter, decisions of the Transition RAC within its mandate shall be made by simple majority of seated Transition RAC members.

6.7 Limits on Transition RAC Authority. The Transition RAC is a temporary implementation authority only and has no continuing or general executive, policy-making or treasury-allocation authority except as expressly set out in this Agreement and the Charter.

6.8 Internal Process and Transparency. The internal process, transparency obligations, record-keeping obligations, and any additional decision thresholds of the Transition RAC shall be set out in the Charter.

6.9 Transition Controllers / Founding Transferor-Facing Role. For Founding Transferor due-diligence and transition purposes, the Transition RAC members may be identified as the natural-person transition controllers of the Company during the Transition Period, without thereby creating any permanent manager status after the Company becomes Algorithmically Governed.

6.10 Sunset and Handover. Upon the Activation Date, the mandate of the Transition RAC shall expire automatically save to the extent strictly necessary to complete any residual handover step already approved in accordance with this Agreement and the Charter.

6.11 Vacancy and Replacement. If a seat on the Transition RAC becomes vacant before the Activation Date by reason of death, permanent incapacity, resignation, or any other cause, the following procedure shall apply:

(a) the remaining seated Transition RAC members shall, by unanimous written resolution, promptly declare the seat vacant and publish notice of the vacancy to the Official Venue;

(b) a replacement member shall be identified by a recognised community advisory outcome achieving the elevated recognition threshold applicable to Entrenched Provision matters specified in the Charter (being the threshold referred to in clause 12.2(c)(ii));

(c) before being seated, the replacement member shall: (i) satisfy all applicable onboarding, compliance, KYC, and eligibility requirements; (ii) accept this Agreement and, where applicable, the Charter, in accordance with clause 4.5; and (iii) be recorded as a replacement member in Schedule 1 by written resolution of the then-seated Transition RAC members;

(d) Membership and all signer and signatory rights of the replacement member shall commence upon satisfaction of the conditions in clause 6.11(c) and not before; and

(e) where no seated Transition RAC members remain to declare a vacancy, the Registered Agent may publish notice of the vacancy to the Official Venue on behalf of the Company, and the community advisory outcome procedure in clause 6.11(b) shall apply accordingly; and

(f) a seat is deemed vacant for the purposes of this clause 6.11 where the member holding it has been wholly uncontactable or non-participating in the business of the Transition RAC for a continuous period of not less than twenty-one days, following not fewer than three documented attempts at contact through all known communication channels made by the remaining seated Transition RAC members and recorded, together with their dates, methods, and outcomes, to the Official Venue. A declaration of vacancy under this clause 6.11(f) is made by unanimous written resolution of the remaining seated Transition RAC members and does not, of itself, terminate the Membership of the relevant member, but has the effect that the relevant member is not treated as Seated for the purposes of clauses 9.11 and 12.2(c) until the vacancy is filled in accordance with this clause 6.11 or the member resumes active participation and notifies the Company accordingly, whichever first occurs.

ARTICLE VII – PERMANENT RAC

7.1 Election and Seating of the Permanent RAC. The Permanent RAC shall be elected by the community during the Transition Period, after satisfaction of Activation Condition 6 (ratification of the Charter and full policy framework), in accordance with the Charter and the Elections Policy forming part thereof. The Permanent RAC shall be formally seated, with written acceptance from each elected member, prior to the Activation Vote, as required by Activation Condition 7. The Permanent RAC shall assume its constitutional role under this Agreement and the Charter with effect from the Activation Date. For the avoidance of doubt, the election and seating of the Permanent RAC during the Transition Period constitutes a precondition to the Activation Vote and does not, of itself, confer on the Permanent RAC any authority or role prior to the Activation Date.

7.2 Role of the Permanent RAC. The Permanent RAC is the guardian of the governance process and constitutional order of the Company and is not, unless expressly stated otherwise, a manager, general executive, treasury-management body, or policy-making authority.

7.3 No Managerial Status. The Permanent RAC shall not be treated as the manager of the Company merely by reason of its governance-process oversight role.

7.4 Detailed Framework in Charter. The composition, candidacy rules, election mechanics, term, removal process, reporting obligations and detailed mandate of the Permanent RAC shall be governed by the Charter and any subordinate governance rules validly adopted thereunder.

7.5 No Automatic Continuity from Transition RAC. Service on the Transition RAC shall not create any automatic continuity into the Permanent RAC.

7.6 Candidacy and Eligibility. Former Transition RAC members may stand as candidates for the Permanent RAC on the same basis as other eligible candidates if they satisfy the applicable eligibility requirements set out in the Charter and any subordinate governance rules validly adopted thereunder.

ARTICLE VIII – ALGORITHMICALLY GOVERNED MODEL, ACTIVATION AND HANDOVER

8.1 Long-Term Governance Model. During the Transition Period, the Company shall be member-managed solely for formation and implementation purposes, with the Transition RAC and such authorised persons carrying out the transitional functions set out in this Agreement and the Charter. Following the Transition Period and satisfaction of the Activation Conditions, the Company shall become Algorithmically Governed, and the Certificate of Formation and this Agreement may be amended, where necessary, to reflect algorithmic management under applicable Marshall Islands law.

8.2 Transition Governance Override. During the Transition Period, the transitional governance framework in this Agreement and the Charter shall prevail over any assumption that the Company is already fully Algorithmically Governed.

8.3 Activation Date – Activation Vote. The Activation Date shall be the date on which the Activation Vote passes in accordance with this Agreement and the Charter. No resolution of the Transition RAC alone shall constitute or substitute for the Activation Vote as the means by which the Activation Date is determined. For the avoidance of doubt, the Transition RAC has no unilateral authority to declare or defer the Activation Date.

8.4 Activation Conditions. The Activation Conditions are those set out in Schedule 5 to this Agreement, as supplemented by any additional conditions specified in the Charter. Each condition in Schedule 5 is stated in binary terms and is accompanied by the evidential proof

required to establish its satisfaction. The conditions set out in Schedule 5 include, at minimum:

(a) valid formation of the Marshall Islands DAO LLC in accordance with applicable law;

(b) completion of initial compliance, KYC and BOIR processes to the extent required for launch;

(c) establishment of the treasury, custody, and signer framework;

(d) identification of the relevant Governance Mechanism, governance contracts or smart contracts, voting mechanism, and official online venues;

(e) formal ratification by the community of the Charter and full policy framework through a constitutional vote conducted through the Governance Mechanism;

(f) completion of the Permanent RAC election and formal seating of at least the minimum number of Permanent RAC members specified in the Charter, conducted under the community-ratified Charter and Elections Policy;

(g) completion of the principal continuity and asset-transfer steps required for handover; and

(h) completion of the handover conditions specified in this Agreement and the Charter.

8.5 Activation Statement and Transition RAC Publication Duty. Upon being satisfied that each condition set out in Schedule 5 has been met, supported by the evidential proof specified therein, the Transition RAC shall promptly publish to the Official Venue an Activation Statement confirming the satisfaction of each condition together with the corresponding evidence. The Transition RAC shall initiate or procure the initiation of the Activation Vote within fourteen days of publication of the Activation Statement. For the avoidance of doubt:

(a) the Transition RAC shall have no discretion to delay publication of the Activation Statement once the evidential proofs for all Schedule 5 conditions are in its possession; and

(b) the Transition RAC shall have no discretion to delay initiation of the Activation Vote once the Activation Statement has been published.

Failure by the Transition RAC to comply with this clause shall constitute a breach of its obligations under this Agreement.

8.6 Activation Vote. The Activation Vote is the vote conducted through the Governance Mechanism by which Governance Participants confirm that each Activation Condition set out in Schedule 5 has been satisfied. The Activation Vote is the sole binding governance vote of the Company during the Advisory Governance Period. The mechanics of the Activation Vote, including the voting period, the quorum threshold, the majority required for the vote to carry, and the mechanics applicable in the event the vote fails to reach quorum or majority, shall be set out in the Charter. Subject to the Charter mechanics being satisfied, the passing of the Activation Vote shall constitute a binding decision of the Company and shall determine the Activation Date.

8.7 Foundation-Dependency and External Delay – Safe Harbour. Delay in the satisfaction of any Activation Condition that is wholly or partly attributable to:

(a) the timing or progress of the Asset Transferor's transfer process;

(b) any regulatory or compliance requirement imposed by applicable law or by the Asset Transferor as a condition of transfer; or

(c) any other matter outside the reasonable control of the Transition RAC, shall not constitute a breach of any obligation of the Transition RAC under this Agreement and shall

not affect the standing or authority of the Transition RAC during such period of delay. Where delay is attributable to a matter in this clause, the Transition RAC shall publish a brief written explanation to the Official Venue within fourteen days of becoming aware that such a dependency or external factor is affecting the timeline for satisfaction of the relevant condition, and shall update the community at intervals of not less than once every thirty days for so long as the dependency or factor continues.

8.8 Effect of Activation. On the Activation Date, the Company shall become Algorithmically Governed, governance outcomes validly determined through the recognised Governance Mechanism shall become binding decisions of the Company, the Transition RAC shall cease to exercise transition authority except insofar as strictly necessary to complete any residual handover step already approved, and the Permanent RAC shall assume its constitutional role in accordance with this Agreement and the Charter.

8.9 Binding Legal Effect of Governance Mechanism. Following the Activation Date, the Governance Mechanism recognised by this Agreement and the Charter shall be the principal means by which binding governance outcomes of the Company are produced, subject always to this Agreement, the Charter, and applicable law.

8.10 Off-Chain Implementation Where Required. Nothing in this Article prevents off-chain implementation, legal execution, compliance action, custody activity, or other non-automated functions from being carried out by authorised Persons or bodies where required by this Agreement, the Charter, applicable law, or the nature of the relevant matter.

ARTICLE IX – CONTINUITY, ASSET TRANSFER, TREASURY, CUSTODY AND SIGNERS

9.1 Formation Purpose and Continuity. The Company is formed to receive and manage assets, including from the Founding Transferor and any other Asset Transferor, in order to continue and support the advancement of decentralised ledger technology consistent with the objects set out in Article III.

9.2 Legal Signatory. During the Transition Period, the Transition RAC shall designate the Legal Signatory by written resolution. Following the Transition Period, the Legal Signatory shall be the Person or office-holder designated in accordance with the Charter or a valid governance decision adopted thereunder. The Legal Signatory shall act only within the limits of authority conferred by this Agreement, the Charter, and any valid governance decision, and shall not, merely by virtue of that office, be treated as a manager of the Company. The Legal Signatory may, within the authority conferred by this Agreement, the Charter, or a valid governance decision:

(a) execute continuity statements, contracts, transfer documents, custody documents, regulatory filings, and other legal instruments on behalf of the Company;

(b) act as the Company's legal representative for entity-maintenance and compliance purposes;

(c) sign and file such notices, confirmations, or certifications as may reasonably be required to give effect to a valid governance decision or to maintain the Company's good standing; and

(d) initiate, pursue, defend, settle, or otherwise deal with legal proceedings or legal demands on behalf of the Company where so authorised.

9.3 Continuity Statement Authority. The Legal Signatory or such person as the Transition RAC may authorise is authorised to execute on behalf of the Company a continuity statement in substantially the form required by the Founding Transferor, or such other form as may be approved in accordance with this Agreement and the Charter.

9.4 Receipt of Assets. The Company may receive crypto-assets, stablecoins, fiat, web2 credentials, repositories, domains, contractual rights, intellectual property rights and other assets or control positions transferred or granted to it in accordance with approved transfer documentation.

9.5 Reliance on Transferor Information. The Company receives assets from Asset Transferors in good-faith reliance on the representations made by the transferring party and without prejudice to the Company's rights or remedies if those representations prove inaccurate or misleading.

9.6 No Personal Ownership Consequence. No Member, Governance Participant, RAC member, signer or other role-holder shall acquire any personal ownership right in Company assets merely by reason of participating in governance, acting as a signatory, or serving in any transition or permanent governance role.

9.7 Transition Treasury. During the Transition Period, the Company shall maintain a transition treasury, including the DAO multisig treasury wallet and such related custody or treasury arrangements as may be approved in accordance with this Agreement and the Charter.

9.8 Custody. The Company may use an initial custody solution approved for transition purposes, including PrimeVault if adopted, and shall document the custody arrangement and control structure on a confidential basis to the extent required by the Founding Transferor or other Asset Transferor.

9.9 Signers. The Company shall designate the initial signers for the transition treasury in Schedule 2, by initial written resolutions, or in such confidential implementation record as is authorised under this Agreement and the Charter.

9.10 Signer Set. The signer set during the Transition Period may consist of all three Transition RAC members or such subset as is approved in accordance with the Charter and any relevant transfer requirements.

9.11 Thresholds. If the current three Transition RAC members act as the initial signers during the Transition Period, ordinary transition treasury actions shall require a 2-of-3 signing threshold and protected matters or high-sensitivity actions shall require a unanimous signing threshold of all seated Transition RAC members acting as signers, being not fewer than two, subject to any more detailed confidential operational signing process approved under the Charter.

9.12 Protected Matters. Protected matters shall include, at minimum:

(a) transfer or disposal of material treasury assets;

(b) movement of assets outside approved Company-controlled custody structures;

(c) transfer, assignment or exclusive licensing of core intellectual property, repositories, domains or critical web2 credentials;

(d) amendment of signer controls or treasury thresholds;

(e) any action, decision, or amendment to this Agreement or the Charter that would, directly or indirectly: (i) alter the definition of Activation Date or otherwise change the conditions or mechanism by which the Transition Period ends; (ii) modify, circumvent, or defer the Activation Vote requirement; (iii) extend the mandate or authority of the Transition RAC beyond the scope expressly permitted under this Agreement, including clause 6.10; or (iv) otherwise delay or defer the process by which the Company becomes Algorithmically Governed (each such action, decision, or amendment being an "extension" of the Transition Period for the purposes of this clause);

(f) amendment of the Transition RAC sunset or handover provisions;

(g) amendment of the Permanent RAC constitution mechanics; and

(h) such other matters as are specified in the Charter.

9.13 Web2 Credentials and Recovery Controls. The Company shall maintain reasonable security, access control and recovery procedures for web2 credentials, repositories, social accounts, domains and similar assets, as further detailed in the Charter or in confidential implementation documents approved thereunder.

9.14 Record of Continuity Statement. Any continuity statement executed on behalf of the Company may be recorded in the recognised governance records, governance repository, or such other official Company record as the Transition RAC or the Charter may prescribe, subject to any confidentiality or redaction requirements applicable to accompanying transfer or compliance documentation.

ARTICLE X – COMPLIANCE, KYC AND BOIR

10.1 BOIR Filing. The Company shall submit a Beneficial Owner Information Report at formation and with each annual report, in accordance with the Marshall Islands DAO Act.

10.2 Statutory Test. The relevant statutory test is whether a person holds 25% or more of membership interests or voting rights, and if no person does, then who has actual, effective, or sufficient responsibility or control.

10.3 Role-Holder and Control Analysis. The existence of a three-member Transition RAC does not mean automatically that all three must be treated as beneficial owners for BOIR purposes. BOIR turns on the statutory test, not on RAC membership alone. There may therefore be a difference between the governance legitimacy of the continuing three-member Transition RAC and the narrower question of which persons in fact exercise actual or effective control for BOIR purposes.

10.4 KYC. The Company shall collect KYC information for those persons who are required to be KYC'd under applicable law, transfer requirements, custody requirements or the Charter, including, if reasonably possible, all three Transition RAC members during the Transition Period where they are acting as formal transition controllers, signers or other control persons.

10.5 Confidentiality of Compliance Information. KYC, BOIR, signer identity, custody and related compliance information may be maintained and disclosed only to the registered agent, Registrar, Founding Transferor, custody providers, professional advisers, regulators, and other persons lawfully entitled to receive it, and shall not be publicly disclosed except where disclosure is required by law, this Agreement, the Charter, or a valid governance decision adopted in accordance with them.

10.6 Entity Standing. The Company shall maintain its good standing, including all annual and other compliance requirements, in accordance with Marshall Islands applicable law.

ARTICLE XI – CHARTER, SUBORDINATE GOVERNANCE RULES AND HIERARCHY

11.1 Charter. The Company shall adopt a Charter or Constitution containing the detailed governance framework, including transition governance principles and internal process rules for the Transition RAC, reporting obligations and transparency requirements, the detailed framework for the Permanent RAC, candidacy, nomination and election rules for the Permanent RAC, detailed governance process mechanics, algorithmic-governance activation mechanics, recognised governance platform and smart-contract architecture, protected-matter categorisation, and such other governance provisions as are consistent with this Agreement.

11.1A Recognition of Pre-Formation Ratification. The constitutional ratification of the Charter and the full policy framework referred to in Schedule 5 condition 6(b) is a community act taken before the Company's formation, conducted through the community's governance system in use at the time of that vote. The Company, on execution of this Agreement, ratifies and adopts that vote and the version of the Charter and policy framework it approved, and recognises the record of that vote as satisfying Schedule 5 condition 6(b) for all purposes of this Agreement. For the avoidance of doubt, this clause confers no power to alter the ratified Charter or policy framework, and any amendment to them before the Activation Date is made only in accordance with clause 12.1 or clause 12.2.

11.2 Subordinate Governance Rules. Operational rules, parameters, procedures and policies may be adopted pursuant to the Charter to supplement this Agreement and the Charter.

11.3 Hierarchy. The Republic of Marshall Islands law and the Certificate of Formation prevail by operation of law. Subject thereto, this Agreement prevails over the Charter, and the Charter prevails over any subordinate governance rule or policy.

11.4 Governance and Technical Identifiers. The recognised Governance Platform, governance contracts, smart-contract identifiers, treasury wallet identifiers, and any related technical identifiers material to the Governance Mechanism shall be recorded in the **On-Chain Identifiers & Verification Policy**, which is the authoritative operational record of those identifiers and is incorporated by reference in Schedule 4 of this Agreement. Where those identifiers exist at the date of this Agreement, the On-Chain Identifiers & Verification Policy shall be completed before execution to the extent then available. Where any identifier first comes into operational use, or any recorded identifier changes, after the date of this Agreement, the Company shall update the On-Chain Identifiers & Verification Policy accordingly in accordance with the change and update procedure set out in that Policy, and shall, to the extent required by section 106(2) or section 107 of the DAO Act, notify MIDAO and procure an amendment to the Certificate of Formation to reflect the updated identifier. Such identifiers may further be recorded in the Charter or the recognised governance records of the Company. The Company shall notify the registered agent or such other persons as may be required by law or operational necessity of any update to the identifiers recorded in the On-Chain Identifiers & Verification Policy. For the avoidance of doubt: (a) the On-Chain Identifiers & Verification Policy is subordinate to this Agreement and the Charter, and nothing in it, or in this clause, alters the hierarchy in clause 11.3; and (b) nothing in this clause displaces the requirement in clause 12.1 for any amendment that alters the text of this Agreement itself, as distinct from the recording of an identifier update in the On-Chain Identifiers & Verification Policy in accordance with that Policy's change and update procedure.

11.5 Operational and Delegated Functions. The Charter or subordinate governance rules may establish operational functions, delegated functions, or role-based responsibilities to support the governance, administration, compliance, execution, custody, and maintenance of the Company, provided always that such functions remain subordinate to this Agreement and the Charter and do not alter the constitutional role of the Transition RAC, the Permanent RAC, or the Membership structure except in accordance with a valid amendment to this Agreement where required.

11.6 Governance Contracts / Smart Contracts Precedence. This Agreement and the Charter shall prevail over any conflicting governance contract, smart contract, treasury execution logic or similar technical mechanism, unless and until lawfully amended in accordance with the applicable governance procedures.

ARTICLE XII – AMENDMENTS, LIABILITY AND INFORMATION

12.1 Amendments – General Rule. This Agreement may be amended only in accordance with the governance process validly applicable at the relevant time, subject always to the following:

(a) during the Transition Period, amendments shall be subject to the transition thresholds and protected-matter rules set out in this Agreement and the Charter;

(b) following the Activation Date, amendments shall be subject to the long-term governance framework set out in this Agreement and the Charter; and

(c) in all cases, no amendment shall be made to any Entrenched Provision except in strict compliance with clause 12.2 of this Agreement.

12.2 Entrenched Provisions.

(a) Designation. The following provisions of this Agreement are entrenched constitutional provisions (each an **"Entrenched Provision"**) and may be amended only in accordance with the higher thresholds set out in this clause, notwithstanding any other provision of this Agreement:

(i) Article III in its entirety (Objects, Non-Profit Character and Application of Property), including the non-distribution principle in clause 3.4, the permitted payments in clause 3.5, and the objects in clause 3.2;

(ii) Article XIII in its entirety (Dissolution and Winding Up), including the asset lock in clause 13.2, the successor criteria in clause 13.4, and clause 13.5;

(iii) clause 11.3 (Hierarchy);

(iv) clause 12.1 (Amendments – General Rule), this clause 12.2, and the amendment procedure itself;

(v) clause 12.7 (Fiduciary Duty Disclaimer);

(vi) clauses 7.1, 7.2, and 7.3 (Constitution, Role and Non-Managerial Status of the Permanent RAC);

(vii) clause 6.10 (Sunset and Handover of Transition RAC); and

(viii) such further provisions as are designated as Entrenched Provisions in the Charter, provided that no such Charter designation shall itself have the status of an Entrenched Provision unless so specified in this Agreement.

(ix) the minimum Constitutional quorum floor designated as an Entrenched Provision in the Charter, being the rule that the quorum threshold for Constitutional proposals may not be reduced below 7% of eligible voting power by any proposal, including a Constitutional proposal – any proposal purporting to do so is void and may not be executed; and

(x) the minimum voting power source floor designated as an Entrenched Provision in the Charter, being the rule that XRD (liquid holdings) and LSU (Liquid Staking Units, converted to XRD-equivalent at snapshot) shall always be recognised as eligible voting power sources for all DAO governance votes, and that this floor may not be reduced or removed by any proposal, including a Constitutional proposal.

(b) Absolute prohibitions during the Transition Period. During the Transition Period, no amendment shall be made to any Entrenched Provision that would:

(i) modify, restrict, or circumvent the non-distribution principle in clause 3.4;

(ii) alter the objects of the Company in clause 3.2 in a manner inconsistent with the non-profit character of the Company;

(iii) enable any distribution of assets to Members on winding up otherwise than in accordance with clause 13.2; or

(iv) alter the hierarchy established by clause 11.3 in a manner that subordinates this Agreement to the Charter or to any subordinate governance rule.

Such amendments are prohibited absolutely during the Transition Period and shall be of no force or effect even if purportedly approved in accordance with this clause.

(c) Elevated threshold during the Transition Period. Save for the absolutely prohibited amendments in clause 12.2(b), an Entrenched Provision may be amended during the Transition Period only upon:

(i) a unanimous affirmative vote of all seated Transition RAC members, being not fewer than two;

(ii) a concurrent recognised advisory outcome from the Governance Mechanism in favour of the amendment, meeting the higher recognition threshold specified in the Charter for proposed amendments to Entrenched Provisions; and

(iii) written notification to the registered agent and public disclosure to the Official Venue of the nature of the proposed amendment, the governance basis for it, and the advisory outcome, not less than fourteen days before the amendment takes effect.

(d) Elevated threshold following the Activation Date. Following the Activation Date, an Entrenched Provision may be amended only by a governance decision satisfying each of the following requirements:

(i) participation by holders of not less than the quorum threshold for Entrenched Provision amendments specified in the Charter, which shall be not less than twice the ordinary quorum threshold for governance decisions;

(ii) an affirmative vote of not less than two-thirds of all Governance Tokens participating in the relevant vote;

(iii) where the proposed amendment affects the constitutional role, composition, election mechanics, or removal procedure of the Permanent RAC, the prior written consent of the Permanent RAC by the majority specified in the Charter; and

(iv) public disclosure of the proposed amendment to the Official Venue not less than twenty-one days before the vote opens.

(e) Saving provision. Nothing in this clause affects the operation of Marshall Islands law or the Certificate of Formation, both of which prevail over this Agreement by operation of law in accordance with clause 11.3.

12.3 Amendment Record and Versioning. The Company shall maintain an authoritative amendment record for this Agreement, identifying each amendment, the provisions amended, the governance decision authorising it, the date of effect, and the version then in force. Such record may be maintained in the governance repository, official online venue, or other recognised Company record, and shall be made available in accordance with this Agreement, the Charter, and applicable law.

12.4 Liability Limitation. No Member, Governance Participant, Transition RAC member, Permanent RAC member, signer or other role-holder is personally liable for the debts, obligations or liabilities of the Company solely by reason of their Membership, Governance Participation, office or role, except as provided by applicable law.

12.5 Indemnification.

(a) Mandatory indemnification. Subject to clause 12.5(d), the Company shall indemnify and hold harmless each Covered Person (as defined in clause 1.23) against all losses, liabilities, damages, costs, charges, and expenses, including reasonable legal fees and

disbursements ("**Indemnifiable Losses**"), actually and reasonably incurred or suffered by that Covered Person in connection with any claim, action, proceeding, investigation, or demand, whether civil, criminal, regulatory, or administrative, arising out of or in connection with the performance or purported performance of that Covered Person's authorised role under this Agreement, the Charter, or a valid governance decision, provided that the Covered Person was acting in good faith within the scope of their authorised role at the relevant time.

(b) Advancement of expenses. The Company shall advance Indemnifiable Losses, including reasonable legal fees and disbursements, to a Covered Person as they are incurred and before the final resolution of any relevant claim or proceeding, provided that:

(i) the Covered Person provides the Company with a written undertaking to repay all amounts advanced if it is ultimately determined by a final, non-appealable decision of a competent court, arbitral tribunal, or other body of competent jurisdiction that the Covered Person is not entitled to indemnification under this clause in respect of the relevant matter; and

(ii) the Covered Person provides the Company with reasonable details of the expenses for which advancement is sought, together with such supporting documentation as the Company may reasonably require.

The obligation to advance expenses applies from the date of this Agreement and is not conditional upon the adoption of the Charter or any subordinate governance rule.

(c) Insurance. The Company may, to the extent available on commercially reasonable terms, purchase and maintain insurance on behalf of any Covered Person against any liability, loss, or expense incurred in connection with the performance of their authorised role under this Agreement, the Charter, or a valid governance decision, whether or not the Company would have power to indemnify that person against such liability, loss, or expense under this clause or applicable law. The decision to purchase and maintain such insurance shall be taken by the Transition RAC during the Transition Period and thereafter by the governance process applicable at the relevant time.

(d) Exclusions. The indemnification and advancement obligations in this clause shall not apply to Indemnifiable Losses that:

(i) result from the wilful misconduct, gross negligence, or fraud of the Covered Person seeking indemnification or advancement;

(ii) arise from a deliberate material breach by the Covered Person of this Agreement or the Charter;

(iii) arise from the Covered Person acting outside the scope of their authorised role under this Agreement, the Charter, or the applicable governance decision; or

(iv) are required by applicable law to be excluded from indemnification or are of a category in respect of which indemnification is prohibited by applicable law.

(e) Procedure. A Covered Person seeking indemnification or advancement of expenses under this clause shall:

(i) notify the Company promptly upon becoming aware of any claim, action, proceeding, investigation, or demand in respect of which indemnification or advancement may be sought, providing reasonable details of the matter; and

(ii) co-operate reasonably with the Company and its advisers in connection with the investigation, defence, or resolution of any such claim, action, proceeding, investigation, or demand, including by providing access to relevant documents and information within the Covered Person's reasonable control.

Failure by a Covered Person to give timely notice under clause 12.5(e)(i) shall not relieve the Company of its obligations under this clause except to the extent that the Company is materially prejudiced by such failure.

(f) Settlement. The Company shall not settle any claim, action, proceeding, investigation, or demand in a manner that imposes any obligation, restriction, liability, or sanction on a Covered Person without the prior written consent of that Covered Person, such consent not to be unreasonably withheld or delayed.

(g) Non-exclusivity. The rights conferred by this clause are in addition to and not in substitution for any other right to indemnification, contribution, or reimbursement which a Covered Person may have under applicable Marshall Islands law, any other provision of this Agreement, the Charter, or any insurance policy maintained by the Company. To the extent that a Covered Person recovers under any such other right or insurance policy, the Company's obligations under this clause shall be reduced accordingly to avoid double recovery.

(h) Charter supplementation. The Charter or subordinate governance rules may supplement the indemnification and advancement rights conferred by this clause, including by extending the categories of Covered Person, expanding the categories of Indemnifiable Losses, or setting out procedural arrangements for making and processing indemnification claims. However, no Charter provision or subordinate governance rule shall restrict, qualify, or reduce the mandatory indemnification and advancement obligations in clauses 12.5(a) and 12.5(b) as they apply to Covered Persons during the Transition Period, and any such Charter provision or rule purporting to do so shall be of no force or effect.

(i) Survival. The indemnification and advancement obligations in this clause shall survive:

(i) the cessation of Membership or the cessation of any authorised role of the relevant Covered Person, in respect of acts or omissions occurring during the period of that Membership or authorised role; and

(ii) the dissolution and winding up of the Company, to the extent that sufficient assets are available after payment of all debts and liabilities of the Company in accordance with Article XIII.

12.6 Information Rights. The information rights of Members and others shall be governed by applicable law, this Agreement, the Charter, and the public-availability rules applicable to distributed ledger information. Confidential compliance and transfer information may be withheld from public disclosure except where disclosure is required by law or by the governance framework validly adopted thereunder.

12.7 Fiduciary Duty Disclaimer.

(a) Statutory basis. This clause is adopted pursuant to and in accordance with section 109 of the Marshall Islands DAO Act 2022. To the fullest extent permitted by the law, the provisions of this clause restrict and, where the law so permits, eliminate the fiduciary duties that any Covered Person might otherwise owe.

(b) Covered Persons. The term "Covered Person" is defined in clause 1.23. For the avoidance of doubt, references to a Covered Person in this clause and in clause 12.5 are to the persons described in clause 1.23 acting in the exercise of their role in relation to the Company.

(c) Restriction and elimination of fiduciary duties. To the fullest extent permitted by applicable law, any fiduciary duty, including any duty of loyalty, any duty of care beyond the standard set out in clause 12.7(d), any duty to act in the best interests of other Members or Governance Participants, and any duty to account for personal profit, that a Covered Person might otherwise owe to the Company, to any Member, or to any Governance Participant

solely by reason of their status as a Covered Person is hereby restricted and, to the maximum extent the law permits, eliminated.

(d) Standard of conduct in substitution. In lieu of any eliminated or restricted fiduciary duty, each Covered Person shall be required to act:

(i) in good faith;

(ii) within the scope of the authority conferred on them by this Agreement, the Charter, and any applicable governance decision; and

(iii) not in a manner that constitutes wilful misconduct, gross negligence, fraud, or a deliberate material breach of this Agreement or the Charter.

(e) Governance Participants. A Governance Participant owes no fiduciary duty to any other Governance Participant, to any Member, or to the Company solely by reason of holding Governance Tokens or exercising governance rights through the Governance Mechanism. Each Governance Participant may vote, propose, and participate in the governance system in their own interest, subject only to the good faith standard in clause 12.7(d) and to applicable law.

(f) Reliance. A Covered Person shall be entitled to rely, in good faith, upon:

(i) the provisions of this Agreement and the Charter;

(ii) the records and determinations of the Governance Mechanism;

(iii) the advice of legal counsel, accountants, compliance advisers, or other professional advisers retained by or on behalf of the Company; and

(iv) information, opinions, and reports provided by other Covered Persons acting within the scope of their authorised roles,

and shall not be liable for any act or omission taken in good faith reliance on any of the foregoing.

(g) Saving provision. This clause does not:

(i) modify or eliminate the implied covenant of good faith and fair dealing applicable under Marshall Islands law;

(ii) restrict or eliminate any duty or liability to the extent that such restriction or elimination is not permitted by applicable law; or

(iii) limit the Company's ability to pursue claims against a Covered Person for wilful misconduct, gross negligence, or fraud.

(h) Scope of this clause. This clause applies from the date of execution of this Agreement and governs the conduct of all Covered Persons from that date, including during the Transition Period and following the Activation Date.

ARTICLE XIII – DISSOLUTION AND WINDING UP

13.1 Dissolution. The Company may be dissolved only in accordance with applicable law, this Agreement and the applicable governance process.

13.2 Asset Lock. On the winding up or dissolution of the Company, after provision has been made for all debts and liabilities of the Company, any assets or property remaining available for distribution shall not be paid or distributed to the Members but shall be transferred to another body, charitable or otherwise, whose objects are similar to those of the Company.

13.3 Selection of Recipient Body. Such body shall be determined by resolution of the Members or by the governance process then applicable to the Company at or before the time of winding up or dissolution.

13.4 Successor Criteria. A successor body shall qualify only if it is organised on a non-profit or non-distribution basis and is committed to applying received assets toward purposes substantially aligned with the objects in Article III.

13.5 No Member Distribution on Dissolution. No Member, Governance Participant, RAC member, signer or other role-holder shall have any personal entitlement to Company assets on winding up merely by virtue of their status.

ARTICLE XIV – GOVERNING LAW AND DISPUTE RESOLUTION

14.1 Governing Law. This Agreement and any non-contractual obligations arising out of or in connection with it shall be governed by and construed in accordance with the laws of the Republic of the Marshall Islands. The parties acknowledge that the Company is formed as a Marshall Islands non-profit DAO LLC under the Marshall Islands DAO Act 2022 and related legislation, and that the application of Marshall Islands law is essential to give proper effect to the Company's legal personality, the rights and obligations of its Members, the operation of the Governance Mechanism, the fiduciary duty disclaimer in clause 12.7, and the other provisions of this Agreement that are specific to or depend upon Marshall Islands law.

14.1A Pre-Arbitration Process. Before commencing arbitration under clause 14.2, the disputing parties shall first submit the dispute to the governance or dispute-resolution process established by the Charter, unless one or more of the following exceptions applies:

(a) no governance or dispute-resolution process has been established under the Charter, or no such process is applicable to the nature of the dispute in question;

(b) the dispute concerns the validity, existence, or enforceability of this Agreement or the Charter itself, or of any amendment thereto;

(c) the dispute cannot by its nature be submitted to the governance or dispute-resolution process, including because it is a dispute between the Company and a third party who is not subject to that process;

(d) the dispute concerns conduct that is alleged to constitute wilful misconduct, gross negligence, or fraud on the part of a Covered Person;

(e) the time required to complete the governance or dispute-resolution process would, in the reasonable view of the party seeking arbitration, cause irreparable harm or render the relief sought ineffective; or

(f) urgent interim or conservatory relief is required in accordance with clause 14.3.

Where the pre-arbitration process applies, submission to the governance or dispute-resolution process under the Charter shall be a condition precedent to the commencement of arbitration. A party shall be deemed to have complied with this condition precedent upon the earlier of: (i) completion of the governance or dispute-resolution process; (ii) the elapse of thirty days from the date of submission to that process without resolution; or (iii) the written agreement of all disputing parties to proceed directly to arbitration.

14.2 Arbitration. Any dispute, controversy, or claim arising out of or in connection with this Agreement, the Charter, the governance or operation of the Company, or any governance decision of the Company – including any question regarding the existence, validity, interpretation, performance, breach, or termination of this Agreement or the Charter – which cannot be resolved through the pre-arbitration process in clause 14.1A, or in respect of which clause 14.1A does not apply, shall be referred to and finally resolved by arbitration

under the LCIA Rules, which Rules are deemed to be incorporated by reference into this Article. The following terms shall apply to any such arbitration:

(a) Seat. The seat, or legal place, of arbitration shall be London, England. The arbitration shall be conducted in accordance with the laws of England and Wales insofar as they relate to the conduct and supervision of arbitration proceedings, without prejudice to the application of Marshall Islands law as the governing law of the substantive dispute.

(b) Language. The language of the arbitration shall be English.

(c) Number of Arbitrators – Default. The number of arbitrators shall be one, appointed in accordance with the LCIA Rules.

(d) Number of Arbitrators – Escalation to Three-Person Tribunal. Notwithstanding clause 14.2(c), either party to the arbitration may request a three-person tribunal by written notice to the LCIA Court and to the other parties within fourteen days of the date of service of the Response to the Request for Arbitration, where:

(i) the amount in dispute, as stated in good faith by the requesting party, exceeds US$1,000,000; or

(ii) the dispute concerns a fundamental question of constitutional construction of this Agreement or the Charter, the validity of an amendment to this Agreement or the Charter, or the scope of authority of the Permanent RAC or the Transition RAC.

Any such request shall be determined by the LCIA Court, whose decision shall be final and binding on the parties.

(e) Confidentiality. The arbitration and all materials, evidence, awards, and other matters relating to it shall be kept confidential in accordance with Rule 30 of the LCIA Rules 2020, subject to any disclosure required by applicable law, a competent regulatory authority, or a court of competent jurisdiction, or any disclosure reasonably necessary to enforce an award.

(f) Governing Law of the Substantive Dispute. For the avoidance of doubt, the law applicable to the substance of any dispute shall in all cases be the laws of the Republic of the Marshall Islands in accordance with clause 14.1, notwithstanding the London seat and the application of English procedural law.

(g) Final and Binding. Any award made pursuant to this clause shall be final and binding on all parties to the arbitration and may be enforced in any court or jurisdiction of competent authority, including pursuant to the 1958 New York Convention on the Recognition and Enforcement of Foreign Arbitral Awards.

14.3 Urgent Interim Relief. The parties irrevocably submit to the exclusive jurisdiction of the High Court of Justice of England and Wales for any application for urgent interim or conservatory relief in support of arbitral proceedings under clause 14.2, including injunctions, asset preservation orders, freezing orders, and orders restraining an actual or threatened breach of this Agreement or the Charter. Nothing in this clause prevents either party from applying to the LCIA for the appointment of an emergency arbitrator in accordance with Schedule 2 of the LCIA Rules 2020. Any application to the High Court or for an emergency arbitrator shall not constitute a waiver of the obligation to arbitrate under clause 14.2, shall not limit the jurisdiction of any arbitral tribunal constituted thereunder, and shall not preclude either party from commencing or continuing arbitration in respect of the substantive dispute.

14.4 Governance Participants – Dispute Resolution. Without prejudice to clause 14.2, disputes brought by or against Governance Participants in their capacity as such – including disputes arising from the exercise of governance rights through the Governance Mechanism, the outcome of any governance vote or proposal, or the application of the Charter or subordinate governance rules to a Governance Participant – shall, as a first resort and to the fullest extent applicable, be submitted to the governance or dispute-resolution process established by the Charter. The Charter shall include an express agreement on the part of

Governance Participants, as a condition of participating in the governance system of the Company, to submit disputes of this nature to that process before commencing any other legal proceedings or arbitration. Nothing in this clause limits the right of any party to commence arbitration under clause 14.2 where the pre-arbitration process has been exhausted or an exception under clause 14.1A applies.

14.5 Severability. If any provision of this Agreement is held by a court or arbitral tribunal of competent jurisdiction to be invalid, illegal, or unenforceable under applicable law, that provision shall be severed from this Agreement to the minimum extent necessary, and the remaining provisions shall continue in full force and effect. The parties shall, so far as lawfully possible, seek to replace any severed provision with a valid, legal, and enforceable provision that most closely reflects the original commercial and constitutional intent of the severed provision, provided that no such replacement may weaken, reduce, or remove an Entrenched Provision except in accordance with clause 12.2.

SCHEDULES

SCHEDULE 1 – Current Three Members of the Transition RAC

The following are the current three members of the Transition RAC, constituted under clause 6.2 and clause 6.3 of this Agreement:

1. [redacted] – appointed February 7, 2026. Category and role: see Schedule 6.
2. [redacted] – appointed February 7, 2026. Category and role: see Schedule 6.
3. [redacted] – appointed February 7, 2026. Category and role: see Schedule 6.

Personal identifying information (date of birth, residential or business address, passport or identification details) for each member is recorded exclusively in the Form 2 BOIR filed with MIDAO and the Registrar held on a confidential basis in accordance with clause 10.5 of this Agreement, and is not restated in this Schedule.

SCHEDULE 2 – Initial Signers / Signer Set

The initial signers for the transition treasury will be designated by the Transition RAC by written resolution upon establishment of the treasury and custody framework under clause 6.5(d) and clause 9.9 of this Agreement, and recorded in this Schedule or in a confidential implementation record maintained by the Company, as the Transition RAC may determine.

SCHEDULE 3 – Official Online Venue(s)

The Official Venue of the Company is: https://radixdao.org

This is the venue at which governance records, activation statements, status reports, advisory acknowledgements, and other official communications of the Company are published, in accordance with clause 1.18 and clause 2.5 of this Agreement.

SCHEDULE 4 – Governance / Smart Contract Identifier(s)

The Company's governance and technical identifiers – including the governance smart-contract component, the Master Badge, the Owner Badge, the governance package, the resources constituting eligible voting power, the recognised Governance Platform, the Official Venue(s), the Compliance Challenge Filing Channels, and the treasury accounts – are recorded in, and this Schedule incorporates by reference, the **On-Chain Identifiers & Verification Policy** as in force from time to time in accordance with clause **11.4**. This Schedule does not itself enumerate those identifiers or eligible voting power.

SCHEDULE 5 – ACTIVATION CONDITIONS CHECKLIST

Purpose and Operation of this Schedule

This Schedule sets out the Activation Conditions referred to in clause 8.4 of this Agreement. Each condition is stated in binary terms: it is either satisfied or it is not. Satisfaction of each condition is established exclusively by the evidential proof specified in the "Evidence Required" column for that condition. Where satisfaction depends on a matter within a third party's control, the relevant dependency is identified.

The Transition RAC shall use this Schedule as the basis for publishing the Activation Statement under clause 8.5 of this Agreement, attaching or referencing the evidence corresponding to each condition. The Activation Statement shall address each condition in this Schedule in turn.

No.	Condition	Evidence Required	Third-Party Dependency
1	The Company has been validly formed and is registered as a DAO LLC under the Marshall Islands DAO Act 2022	Certificate of Formation issued by the Registrar of Corporations of the Republic of the Marshall Islands	Yes. Registrar of Corporations
2	The initial Beneficial Owner Information Report (BOIR) has been filed with the Registrar in accordance with the Marshall Islands DAO Act 2022	Written confirmation from the registered agent or, where applicable, the Registrar, of successful submission and acceptance of the BOIR	Yes. Registrar; Registered Agent
3	KYC has been completed for all persons required to be KYC'd under applicable law, the Asset Transferor's transfer requirements, custody requirements, or the Charter	Written confirmation from the KYC provider or registered agent that all required KYC files are complete, verified, and accepted	Yes. KYC provider; Registered Agent
4	The treasury and custody framework has been established, including activation of the transition multi-signature wallet and any approved institutional custody arrangements	Executed custody agreement(s) and written confirmation from the custody provider of activation of the multi-signature wallet and establishment of the approved signer set	Yes. Custody provider
5	The Governance Mechanism, governance contracts and smart contracts, voting mechanism, and Official Venue(s) have been identified, documented, and recorded in Schedule 4 of this Agreement. The identifiers recorded in Schedule 4 are confirmed as current and accurate as at the Activation Statement date. The recognised governance platform and all Official Venue(s) are operational and publicly accessible to Governance Participants.	(a) Confirmation by the Transition RAC, by written resolution published to the Official Venue, that the identifiers recorded in the On-Chain Identifiers & Verification Policy remain current, complete, and accurate as at the date of the Activation Statement; (b) the publicly accessible On-Chain Identifiers & Verification Policy, demonstrating that the governance smart contract component address, governance token identifier, governance platform, and Official	No

		Venue address(es) are recorded therein; and (c) evidence of operational accessibility of the governance platform and Official Venue(s), including a live URL or equivalent accessible identifier for each Official Venue.	
6	The Charter and the full policy framework of the Company, as prepared and written by the community during the pre-formation process, have been: (a) adopted by the Transition RAC by unanimous written resolution in its capacity as member-manager of the Company; and (b) formally ratified by the community through a constitutional ratification vote conducted through the Governance Mechanism, achieving the ratification threshold specified in the Charter for constitutional matters.	(a) Signed Transition RAC resolution adopting the Charter and full policy framework, published to the Official Venue; (b) Governance Mechanism record of the constitutional ratification vote, showing the participation level achieved, the majority achieved, and confirmation that the applicable ratification threshold was met; and (c) publication of the ratified Charter and full policy framework to the Official Venue.	No
7	The Permanent RAC election has been completed under and in accordance with the community-ratified Charter and Elections Policy (condition 6 having been satisfied), and at least the minimum number of Permanent RAC members specified in the Charter have been duly elected by the community through the Governance Mechanism and formally seated.	(a) Governance Mechanism record of the Permanent RAC election, showing the candidates who stood, the participation level achieved, the votes cast, and the identity of each member elected; (b) confirmation that the election was conducted in accordance with the Elections Policy forming part of the ratified Charter; (c) written acceptance of appointment from each elected Permanent RAC member; and (d) publication of the election outcome and the identity of the seated Permanent RAC members to the Official Venue.	No
8	The Continuity Statement(s) required under Article IX of this Agreement and the Charter have been duly executed	Executed Continuity Statement(s), made available to the Transition RAC and referenced or recorded in accordance with clause 9.14 of this	Yes. Asset Transferor / Founding Transferor

		Agreement	
9	The principal asset-transfer steps required for handover have been completed or formally initiated by the Asset Transferor	Written confirmation from the Asset Transferor that the transfer of principal assets has been completed or formally initiated pursuant to the terms of the Continuity Statement and applicable transfer documentation	Yes. Asset Transferor / Founding Transferor
10	All handover conditions specified in this Agreement and the Charter have been satisfied	Written confirmation by the Transition RAC, by the resolution threshold applicable to handover matters under this Agreement and the Charter, that each handover condition specified in this Agreement (including clauses 6.5(h) and 6.10) and the Charter has been completed, with each supporting document identified by reference	No

Notes on External Dependencies

Where satisfaction of a condition is marked as dependent on a third party (in particular the Asset Transferor or Founding Transferor), delay attributable to that third party shall be treated in accordance with clause 8.7 of this Agreement and shall not constitute a breach by the Transition RAC or affect the standing of the Transition RAC during the period of delay. The Transition RAC shall comply with its reporting obligations under clause 8.7 in respect of any such dependency.

Waiver

A condition in this Schedule may be formally waived only by a governance decision satisfying the applicable Entrenched Provision amendment threshold set out in clause 12.2(c) of this Agreement during the Transition Period, or clause 12.2(d) following the Activation Date, as applicable. Any purported waiver that does not satisfy the applicable threshold shall be of no force or effect. Any valid waiver shall be recorded in the Activation Statement together with the basis for the waiver and the governance decision authorising it.

Schedule 6 – KYC / BOIR Control Analysis Framework

This Schedule sets out the BOIR control analysis framework for the three members of the Transition RAC identified in Schedule 1, for the purposes of Article X of this Agreement and Regulation 8 of the DAO Regulations 2024.

BOIR Category Analysis. Applying the statutory test in clause 10.2 of this Agreement to the Members of the Company: no single Member (each being a member of the Transition RAC identified in Schedule 1) holds 25% or more of membership interests or voting rights in the Company on an individual basis, so Category A of the BOIR Form 2 does not apply. Because no individual Member meets the Category A threshold, the test proceeds to the second limb of clause 10.2 – who has actual, effective, or sufficient responsibility or control.

On that basis, the three members of the Transition RAC are identified as beneficial owners under **Category B**, by reason of their joint authority over the Company during the Transition Period as the member-managers and signers.

BOIR Entries. The full identification details of each Transition RAC member identified as a beneficial owner under this Schedule are as set out in the Form 2 BOIR filed with MIDAO and the Registrar, a copy of which is held on a confidential basis in accordance with clause 10.5 of this Agreement. This Schedule does not restate that personal information; it records only the role, category, and wallet identifiers relevant to the control analysis above.

Member 1: Tadkis

This dual capacity does not alter the Category B analysis above.

This member executes the BOIR Form 2 referred to in the Note on Declaration below in their capacity as Representative Agent, a capacity distinct from their status as a named beneficial owner under this Schedule.

Radix Blockchain wallet(s) associated with the DAO LLC owned by or held on behalf of this person:

Blockchain: Radix Babylon Ledger Governance wallet address (Radix account):

account_ rdx1299hgmssdhymck9d9903a5xpfedpyf3fcfmtk2j5nte6f8nhdpxset

Member 2: Mr. Peanutbutter

Radix Blockchain wallet(s) associated with the DAO LLC owned by or held on behalf of this person:

Blockchain: Radix Babylon Ledger Governance wallet address (Radix account):

account_ rdx12yu55zy3cx3lx3xjkp9f2vzp2ye2mql5vzhxvq0tks74d5hcp0xkvs

Member 3: projectShift

Radix Blockchain wallet(s) associated with the DAO LLC owned by or held on behalf of this person:

Blockchain: Radix Babylon Ledger Governance wallet address (Radix account):

account_ rdx12y5gnf54z0auwjjfz7yss9ky4qrgw7c4xyu63a6s4edhhc5vctejyk

Treasury Wallet: The transition multi-sig treasury wallet address is as recorded at §5 of the On-Chain Identifiers & Verification Policy.

Note on Declaration: The full legal name, date of birth, residential or business address, passport or identification details, and any other personal identifying information of each beneficial owner named in this Schedule are recorded exclusively in the Form 2 BOIR submitted to MIDAO under section 112 of the DAO Act 2022 and in accordance with the DAO Regulations 2024 by the Representative Agent of the Company, and are not restated in this Schedule. The designation of the Representative Agent and Legal Signatory is recorded in the Transition RAC's written resolution referred to in clauses 2.6 and 9.2 of this Agreement, a copy of which shall be retained with the Company's governance records and made available to the registered agent and Registrar on request.

Each member confirms that the information provided is accurate and complete. The BOIR declaration is made under penalty of perjury under the laws of the Republic of the Marshall Islands.

EXECUTION

IN WITNESS WHEREOF, each of the undersigned, being a member of the Transition RAC of Radix DAO LLC, executes this Operating Agreement on the date set out below their signature. By signing, each member accepts this Agreement in accordance with clause 4.5(a) and agrees to be bound by its terms as a Member of Radix DAO LLC. The full name and details of each signatory shall be recorded in Schedule 1 by the Transition RAC before execution.

SIGNED by [redacted]
as a member of the Transition RAC of RADIX DAO LLC:

Signature: _____

Name (print): [redacted]

Date: 2026-08-17

SIGNED by [redacted]
as a member of the Transition RAC of RADIX DAO LLC:

Signature: _____

Name (print): [redacted]

Date: 2026-08-17

SIGNED by [redacted]
as a member of the Transition RAC of RADIX DAO LLC:

Signature: _____

Name (print): [redacted]

Date: 2026-08-17